



September 7, 2023

Chief, Foreign Investment Review Section ("FIRS")
Deputy Chief, Compliance and Enforcement, FIRS
On Behalf of the Assistant Attorney General for National Security
United States Department of Justice
National Security Division
175 N Street, NE
Washington, DC 20530

Global Investment and Economic Security Directorate, Director
Undersecretary of Acquisition and Sustainment
U.S. Department of
Defense 1400
Defense Pentagon
Washington, DC 20301

Re: TT 23-010; FCC No. ISP-PDR-20221013-00009
LightSpeed Networks Inc. acquisition of PocketiNet Communications Inc.

Dear Sir/Madam:

This Letter of Agreement ("LOA" or "Agreement") sets forth the commitments that PocketiNet Communications Inc ("PocketiNet") and LightSpeed Networks Inc. ("LightSpeed") make to the U.S. Department of Justice ("USDOJ"), including the Federal Bureau of Investigation ("FBI") and the U.S. Department of Defense ("DOD") (collectively, "the Compliance Monitoring Agencies" or "the CMAs"). The contents of this LOA address national security and law enforcement risks arising from the above-referenced Petition to the Federal Communications Commission ("FCC" or "Commission") requesting that it approve an increase in the direct and indirect foreign equity and voting interests in PocketiNet, pursuant to Section 310(b)(4) of the Communications Act and Section 1.5000(a)(1) of the Commission's rules.¹

PocketiNet and LightSpeed certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements they or their representatives have made to USDOJ, the Department of Homeland Security, the DOD, and the FCC in the course of the review of the above-referenced application that was conducted pursuant to Executive Order 13913², and they hereby adopt those statements as the basis for this LOA.

¹ See FCC File Nos. ISP-PDR-20221013-00009.

² 85 Fed. Reg. 19643 (Apr. 8, 2020).

I. Definitions

1. For purposes of this LOA, the following definitions apply:

a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (IT) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.

b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.

c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).

d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.

e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the FCC Application.

f. “Domestic Communications” (“DC”) means:

(i) PocketiNet Wire Communications or Electronic Communications, as defined by 18 U.S.C. § 2510, (whether stored or not), from one location within the United States, including its territories, to another location within the United States; or

(ii) The U.S. portion of a PocketiNet Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any PocketiNet system that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, PocketiNet to provide, process, direct, control, supervise, or manage DC but would not include the systems of entities for which PocketiNet has a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network access.

h. “Electronic Surveillance” means:

(i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);

(ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*;

(iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;

(iv) Acquisition of location-related information concerning a subscriber or facility;

(v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and

(vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Foreign Persons with Access” means any non-U.S. citizen (including management, owners, employees, contractors, Service Provider employees, principal equipment provider employees, or other third party employees, or any other natural person) have Access to: a) U.S. Records; b) Domestic Communications Infrastructure (to include, but not be limited to, principal equipment, network management system, logging/auditing systems, fault management systems, network interfaces that allow read or write access to the management and/or production/operational networks); c) Physical facilities under the Authorization Holder’s control; d) Lawful U.S. Process; or e) Domestic Communications.

k. “Geolocation Data” means any information collected by PocketiNet from its customers regarding a customer’s location or the customer’s device location.

l. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial or arbitral body.

m. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

n. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal process, statutory authorizations and certifications directed to PocketiNet for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

o. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Principal Equipment for the purpose of:

(i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or

(ii) the provision of DC or operation of DCI, including: customer support, OSS, BSS, Network Operations Centers (“NOCs”), information technology, cloud operations/services, 5G (Software Defined Networking, Network Functions Virtualization, Applications), and datacenter services and operations.

p. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

q. “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including a natural person’s name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

r. “Principal Equipment” or “PE” means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports PocketiNet core telecommunications or information services, functions, or operations.

s. “Security” means a condition that results from the establishment and maintenance of protective measures that enable PocketiNet to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

t. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;

- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the company's computer network(s) or associated information systems:
 - i. Unauthorized disruptions to a service or denial of a service;
 - ii. Unauthorized processing or storage of data;
 - iii. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - iv. Unplanned incidents that cause activation of PocketiNet's Cybersecurity Incident Response Plan;
 - v. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the company's ability to comply with the terms of this LOA; or
 - vi. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

u. "Sensitive Personal Data" means PocketiNet sensitive personal data as set forth in 31 C.F.R. § 800.241.

v. "Subscriber Information" means any PocketiNet information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

w. "Service Provider" means any entity (to include any parents, subsidiaries, and affiliates of PocketiNet, as well as contractors, subcontractors, or government agencies) that provides any service that could result in the entity having Access to DCI, DC, Lawful U.S. Process, or U.S. Records. Such services include, but are not limited to: MNPS services; NOC(s) services; network maintenance management, or monitoring services; billing or customer support services; network security services; assistance in fulfilling the obligations of this LOA, and installing, updating, repairing, managing, monitoring, or maintaining PE.

x. "U.S. Records" means PocketiNet's customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by PocketiNet within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c), (d) and 18 U.S.C. § 2709.

II. Personnel

2. PocketiNet agrees to designate and maintain a U.S. law enforcement point of contact ("LEPOC") in the United States who will be subject to prior approval by the CMAs, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless the CMAs agrees otherwise in writing. The LEPOC must be approved by the

FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. PocketiNet agrees to provide the LEPOC's PII to the CMAs within 15 days of the Date of FCC Approval. The CMAs will object or non-object within 15 days from receiving the LEPOC's PII.

4. PocketiNet agrees to notify the CMAs, including the FBI, in writing at least 30 days prior to modifying its LEPOC for the CMAs and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within five days of such event. Under these circumstances, the CMAs and FBI will object or non-object to the replacement LEPOC within 30 days of notification.

5. PocketiNet agrees that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than five days after receiving such Lawful U.S. Process unless the CMAs grants an extension.

6. PocketiNet agrees to implement, either directly or through a vendor, a process to screen existing or newly hired personnel who have Access to PocketiNet's DC, DCI, Lawful U.S. Process, or U.S. Records (including, but not limited to: PocketiNet personnel, its subsidiaries or affiliates' personnel, Principal Equipment vendor or Service Provider personnel). The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. PocketiNet further agrees to provide the CMAs with a written description of this personnel-screening process no later than 60 days after the Date of FCC Approval. The CMAs will object or non-object within 60 days of receiving notice.

7. PocketiNet Foreign Persons with Access: PocketiNet agrees to notify the CMAs of all PocketiNet's Foreign Persons with Access (including, but not limited to PocketiNet owners, managers, employees, its subsidiaries or affiliates' employees).³ With respect to any PocketiNet's Foreign Persons with Access as of the Date of FCC Approval, within 30 days of the Date of FCC Approval, PocketiNet will provide the following information about PocketiNet's Foreign Persons with Access:

- a. The number of PocketiNet's Foreign Persons with Access;
- b. The country(ies) from which they have Access; and
- c. The citizenship of Foreign Persons with Access.

PocketiNet will update this information annually and upon the CMAs request. Upon the CMAs request PocketiNet will also provide additional information, which may include but not be limited to, PII for PocketiNet's Foreign Persons with Access. The CMAs will object or non-object within 60 days of receiving PII for PocketiNet's Foreign Persons with Access.

³ Service Provider Foreign Persons with Access are covered in the Service Provider Section.

III. Security Officer

8. PocketiNet agrees to designate and maintain a security officer (“Security Officer”) who is a non-dual United States citizen residing in the United States, and may also designate and maintain an alternate security officer (“Alternate Security Officer”) to fulfill the responsibilities of the Security Officer in the event of the Security Officer’s unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible to obtain and maintain a “Secret” level or higher U.S. Government security clearance immediately upon appointment. The Security Officer and any Alternate Security Officer will have the appropriate authority and skills to implement the terms of this LOA and to address security concerns identified by the CMAs. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority within PocketiNet to perform the Security Officer’s duties under this LOA. The Security Officer and any Alternate Security Officer will possess the necessary resources and skills to enforce this LOA and to act as a liaison to the CMAs regarding compliance with this LOA and to address any national security or law enforcement issues arising during PocketiNet’s ordinary course of business. PocketiNet will provide the Security Officer and any Alternate Security Officer with Access to PocketiNet’s business information that is necessary for the Security Officer and any Alternate Security Officer to perform the Security Officer’s duties.

9. The Security Officer will be available 24 hours per day, 7 days per week, to respond to and address any national security or law enforcement concerns that the CMAs may raise with respect to PocketiNet or its operations, except that if PocketiNet designates an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon request by the CMAs, the Security Officer or, as applicable, Alternate Security Officer, will be available in person within the United States or its territories within 72-hours, at a date and location, including in a classified setting, as deemed necessary by the CMAs.

10. PocketiNet agrees to nominate a proposed candidate for Security Officer to the CMAs within 15 days of the Date of FCC Approval of the Application, and thereafter will provide at least 10 days’ notice of a Security Officer’s departure, and 30 days’ prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice of such departure or designation must be provided within five days of such event). PocketiNet further agrees to not maintain a vacancy or suspension of the Security Officer position for a period of more than 60 days. In the event that PocketiNet designates an Alternate Security Officer, PocketiNet will nominate a proposed candidate for Alternate Security Officer at least 30 days prior to the date on which PocketiNet proposes to designate an Alternate Security Officer. PocketiNet agrees to provide the proposed Security Officer’s (and any Alternate Security Officer’s) PII with the nomination, along with the proposed Security Officer’s plan to ensure PocketiNet employees are appropriately trained in LOA compliance. All Security Officer nominations and any Alternate Security Officer nominations will be subject to the CMAs review and non-objection and may be subject to a background check at the sole discretion of the CMAs. The CMAs will object or non-object to the proposed Security Officer or Alternate Security Officer, if applicable, within 30 days of notification. PocketiNet agrees to address concerns raised by the CMAs regarding the selection and identity of the Security Officer and any Alternate Security Officer.

IV. Lawful U.S. Process and Requests for Information

11. PocketiNet agrees to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. PocketiNet further agrees to certify to the CMAs its compliance with the Communications Assistance for Law Enforcement Act (“CALEA”), 47 U.S.C. §§ 1001-1010, and its implementing regulations, within 30 days from the Date of FCC Approval.

12. PocketiNet agrees to provide notice of any material modification to its lawful intercept capabilities to the CMAs within 30 days of such modification, and will re-certify its compliance with CALEA no more than 60 days following its notice to the CMAs of any material new facilities, services, or capabilities.

13. Upon receipt of any Lawful U.S. Process, PocketiNet agrees to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

14. PocketiNet agrees not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign entity, or any Foreign person, without prior written consent of the CMAs or a court of competent jurisdiction in the United States.

15. PocketiNet agrees not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of the CMAs or a court of competent jurisdiction in the United States.

16. PocketiNet agrees to refer any requests for information described this section from a Foreign person or a Foreign Government, including any legal process from a Foreign Government, to the CMAs as soon as possible, but in no event later than five days after such a request, or legal process, is received by, or made known to, PocketiNet, unless disclosure of the request, or legal process, would be in violation of U.S. law, or an order of a court of competent jurisdiction in the United States.

17. PocketiNet agrees not to comply with such requests from Foreign Governments and Foreign persons without prior written consent of the CMAs or an order of a court of competent jurisdiction in the United States.

18. PocketiNet agrees to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

V. Security Plans

19. PocketiNet agrees to take all appropriate measures to prevent unauthorized Access to U.S. Records, Lawful U.S. Process, DC, and the DCI.

20. PocketiNet agrees to take all appropriate measures to prevent any unlawful use or disclosure of information relating to U.S. Records, Lawful U.S. Process, DC, and the DCI.

21. PocketiNet agrees to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan (“SSP”) (together the “Plans”), each of which shall be guided by the current version of the National Institute of Standards and Technology (“NIST”) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. PocketiNet will provide copies of those Plans to the CMAs within 60 days of the Date of FCC Approval for objection or non-objection. Such Plans will be consistent with the recommendations of Cybersecurity and Infrastructure Security Agency’s Cross-Sector Cybersecurity Performance Goals (or any subsequent applicable sector specific performance goals). Furthermore, PocketiNet agrees that the Plans will be updated when appropriate to conform with evolving information security standards, and that PocketiNet will make additional modifications to these Plans, if requested by the CMAs, and work with the CMAs to implement such modifications. The CMAs will object or non-object within 90 days of receiving each version of the Plan.

22. PocketiNet agrees that its Plans will include, among other things, policies relating to its information security, supply chain security, peering and routing security, cybersecurity incident response (including detailing when incidents are to be reported to the relevant authorities (*e.g.*, Cybersecurity and Infrastructure Security Agency (“CISA”) and FBI), remote Access, network segmentation, physical security, cybersecurity, Service Provider Access, maintenance and retention of system logs, periodic control assessments, third party cybersecurity audits, routing and interconnect security, protection of Lawful U.S. Process, DCI, DC, and U.S. Records. PocketiNet will also detail PocketiNet’s plans regarding new contracts or amendments to existing contracts with Service Providers requiring them to agree to the conditions set forth in Section X of this agreement.

23. PocketiNet further agrees to take timely and appropriate remedial measures, as recommended by the U.S.-Computer Emergency Readiness Team (“US-CERT”)/CISA, an Information Sharing and Analysis Center (“ISAC”), or similar U.S. authority, to respond to and recover from any cyber or supply chain incident and mitigate vulnerabilities.

VI. U.S. Records and DC Storage

24. PocketiNet agrees to notify the CMAs at least 30 days prior to changing the location for storage of U.S. Records or DC. The CMAs will object or non-object within 60 days of receipt of PocketiNet’s submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is PocketiNet);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

VII. Countries from which U.S. Records, Lawful U.S. Process, DC, and the DCI are Accessed

25. Within 30 days of the Date of FCC Approval, PocketiNet will provide a list of countries from which U.S. Records, Lawful U.S. Process, DC, and the DCI are Accessed (by any natural person or entity). The CMAs will object or non-object within 30 days of receiving such notice. PocketiNet will notify the CMAs 30 days in advance of permitting any Access to U.S. Records, Lawful U.S. Process, DC, and the DCI from a new country from which Access was not previously approved. The CMAs will object or non-object within 30 days of receiving such notice.

VIII. Reporting Incidents and Breaches

26. PocketiNet agrees to report to the CMAs promptly, and in any event no later than 48 hours, after it learns of information that reasonably indicates a known or suspected:
- a. Security Incident;
 - b. Unauthorized Access to, or disclosure of, any information relating to services provided by PocketiNet, or referring or relating in any way to PocketiNet's customers in the United States or its territories;
 - c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
 - d. Any material breach of the commitments made in this LOA.

27. PocketiNet agrees to require any Service Provider to disclose to PocketiNet any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within 48 hours of the third party discovering the breach or loss. PocketiNet agrees further to require any Service Provider to disclose to PocketiNet, within 48 hours of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to PocketiNet that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the Service Providers' supply chain.

28. PocketiNet agrees to notify the CMAs, including the points of contact ("POCs") listed in this LOA, in writing of any of the known or suspected Security Incidents or breaches described in this LOA. Such notification shall take place no later than 48 hours after PocketiNet has knowledge of or is informed by a third party Service Provider to PocketiNet of such a Security Incident or breach, or sooner when required by statute or regulations. PocketiNet will share with the CMAs the results of any internal or third-party investigation/review of the incident, if any, including, but not limited to, any steps taking to mitigate the damage and prevent further incidents.

29. PocketiNet agrees to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within seven business days after reasonable determination that a person without authorization, or in exceeding their authorization, has gained Access to, used, or disclosed CPNI, whether through PocketiNet's network or that of a Service Provider used by

PocketiNet, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>

IX. Principal Equipment

30. PocketiNet agrees to provide the CMAs a Principal Equipment list within 30 days of the Date of FCC Approval. The CMAs will object or non-object to the initial Principal Equipment within 60 days.

31. PocketiNet agrees to notify the CMAs in writing at least 30 days prior to introducing any new Principal Equipment of a different make than the Principal Equipment identified and approved pursuant to Paragraph 30 or subsequently approved by the CMAs pursuant to this paragraph or modifying any of its Principal Equipment. The CMAs will object or non-object to such new Principal Equipment or modification to the Principal Equipment within 30 days of receipt of notice.

32. The Principal Equipment list shall include the following:

- a. Manufacturer Information
 - i. Name
 - ii. Business Address
 - iii. EIN, if available
 - iv. Webpage Address URL, if available
- b. Equipment Information
 - i. Make
 - ii. Model/Version No.
 - iii. Function
 - iv. Access to U.S. Records, Lawful U.S. Process, DC, and DCI
 - v. Country where located
 - vi. Owner (if rented)
- c. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Department of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- d. Notice if the equipment includes logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software from a provider listed on the FCC's Covered List (*See* FCC, List of Equipment and Services Covered by Section 2 of the Secure Networks Act, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*;
- e. Any entity (manufacturer or service provider) providing services related to the Principal Equipment (*e.g.*, involved in providing, installing, operating, managing,

repairing, monitoring, updating, or maintaining the Principal Equipment) should be submitted under the section on Service Providers.

33. PocketiNet agrees to provide to the CMAs updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence (“PoPs”), exchange points, and NOCs within 60 days from the Date of FCC Approval.

X. Service Providers

34. PocketiNet agrees to provide the CMAs a list of all its Service Providers within 30 days of the Date of FCC Approval. The CMAs will object or non-object to the initial Service Provider List within 60 days.

35. PocketiNet agrees to notify the CMAs in writing no less than 30 days prior to the use of any new Service Providers. The CMAs will object or non-object to any new Service Providers within 30 days.

36. PocketiNet’s Service Provider list and notifications will provide the following information about each Service Provider:

- a. Company Name
- b. Business Address
- c. EIN, if available
- d. Webpage Address URL, if available
- e. Country of Incorporation
- f. Principal Place of Business
- g. Description of Service Provided
- h. Information/Systems Access (*e.g.*, DCI, DC, Lawful U.S. Process, or U.S. Records)
- i. Type of Access (Read or Read/Write)
- j. The number of Service Provider Foreign Persons with Access to DCI, DC, Lawful U.S. Process, or U.S. Records and each country from which they will have Access
- k. Any foreign government ownership/control/affiliations
- l. Confirmation that the Service Provider is contractually required, or information detailing a timeline for the adoption of the contractual requirements for the Service Provider, to do the following:
 - i. Screen Employees with Access (pursuant to Section II);
 - ii. Report Security Incidents to PocketiNet (pursuant to Section VIII);
 - iii. Inform PocketiNet more than 30 days in advance of a change in the countries from which Service Provider employees/subcontractors will have Access;
 - iv. Annually submit information detailing for the past year the number of Service Provider Foreign Persons with Access to DCI, DC, Lawful U.S. Process, or U.S. Records and the countries from which they had Access; and
 - v. Conform to PocketiNet’s security policies regarding Service Provider Access.

Upon the CMAs request PocketiNet will provide additional information about the Service Provider, which may include but not be limited to, PII for the Service Provider's Foreign Persons with Access. To the extent that PocketiNet is unable to provide additional information requested by the CMA, PocketiNet shall describe, in writing, the efforts that PocketiNet undertook to obtain the information from the Service Provider and an explanation as to why PocketiNet cannot obtain the requested information. The CMAs will object or non-object within 30 days of receiving PII for a Service Provider's Foreign Persons with Access or receiving the written explanation of the efforts that PocketiNet undertook to obtain the information and explanation of why PocketiNet could not provide it.

37. Consistent with Section VII, PocketiNet will submit any change in the countries from which Service Provider employees/subcontractors will have Access 30 days in advance of such change. The CMAs will object or non-object to any new country within 30 days.

XI. Network Operations Centers

38. PocketiNet agrees to notify the CMAs in writing at least 60 days prior to changing the location of its NOCs. The CMAs will object or non-object to any new NOC location within 60 days of receiving notice of the proposed location change. PocketiNet will provide the address and name of the owner (even if PocketiNet) of any PE, and MNSP (as well as any new Service Providers) of the NOC with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

XII. Change in Ownership and Service Portfolio

39. PocketiNet and LightSpeed agree to provide the CMAs notice of any changes to PocketiNet's business, including but not limited to material corporate structure changes, ownership changes⁴, corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes no less than 30 days in advance of such change. PocketiNet also agrees to provide the CMAs notice within 30 days of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of PocketiNet's debts.

40. PocketiNet agrees to provide the CMAs notice of any material change to its current portfolio of services offering, including offering other services beyond its current service portfolio, no less than 30 days in advance of such change. The CMAs will object or non-object within 30 days of receiving notice.

⁴ For the purposes of this paragraph, "ownership changes" means any of the following: (1) a replacement or change in control of InstarAGF Infrastructure Management II LLC ("Instar"), or the manager of the Instar Funds or any of their respective successors as manager (as applicable) of the Instar Funds; (2) any new investment by, or change in existing rights of, any ultimate beneficial owner of LightSpeed that results in such beneficial owner obtaining a right to: (a) manage or control the activities of LightSpeed and PocketiNet; and/or (b) gain Access to PocketiNet DC, DCI, U.S Lawful Process, or U.S. Records. In addition, with respect to any calendar quarter during which any non-U.S. ultimate beneficial owner has acquired a direct or indirect equity interest in PocketiNet of five percent or more, PocketiNet shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in PocketiNet no later than the end of the following calendar quarter.

XIII. Third-Party Compliance Audit

41. At its sole discretion, but no more frequently than once every calendar year unless the original audit is found by the CMAs to have been unsatisfactory, the CMAs may request that PocketiNet undergo a neutral third-party compliance audit of LOA compliance (including any plan, policy, or procedure approved under this LOA).

42. Within 60 days of the CMAs requesting a third-party audit, PocketiNet will nominate a third-party auditor. Within 60 days of the nomination, the CMAs will approve or disapprove the nominated third-party auditor. As part of the auditor nomination and approval process, PocketiNet will disclose information regarding the nominated auditor's pre-existing relationship with PocketiNet (if any).

43. PocketiNet will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Section.

44. PocketiNet will ensure the selected third-party auditor submits, within 15 days of the CMAs' non-objection to the auditor and prior to commencing the audit, a methodology and proposed scope of audit, both of which will be subject to approval by the CMAs. The statement of work shall allow for direct communication between the CMAs and the third-party auditor, without notice to or participation of PocketiNet.

45. PocketiNet will ensure that the executed engagement agreement with the third-party auditor is provided to the CMAs within five days of execution.

46. The third-party auditor will promptly deliver to the CMAs and PocketiNet all reports and related information generated or gathered during its review that relate directly to PocketiNet's compliance with the terms of this LOA and will agree to meet independently with the CMAs upon request. Unless otherwise agreed to by the CMAs, the Compliance Audit report shall be submitted to the CMAs by the auditor at the same time it is submitted to PocketiNet.

XIV. Annual Report

47. PocketiNet agrees to provide an annual report to the CMAs regarding the company's compliance with this LOA, to include:

- a. If PocketiNet submitted no notifications to the CMAs pursuant to this LOA during the preceding year, a Certification that there were no developments that PocketiNet was required to report under the LOA during the year;
- b. Description of the company's handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein);
- c. Updated Principal Equipment and Service Provider Lists, to include updates to all the information set forth in Sections IX and X, to include information on all Service Provider Foreign Persons with Access in the past year. Upon the CMAs request PocketiNet will provide additional information, which may include but not be limited to, PII for Foreign Persons with Access. To the extent that PocketiNet is unable to provide additional information requested by the CMA, PocketiNet shall describe, in writing, the efforts that PocketiNet undertook to

- obtain the information from the Service Provider and an explanation as to why PocketiNet cannot obtain the requested information. The CMAs will object or non-object within 60 days;
- d. Updated information on PocketiNet's Foreign Persons with Access for the past year as detailed in Paragraph 7. The CMAs will object or non-object within 60 days;
 - e. All countries from which U.S. Records, Lawful U.S. Process, DC, Lawful U.S. Process, and the DCI were Accessed in the past year;
 - f. Notice if PocketiNet has used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in their DCI; Principal Equipment; or other systems supporting DC, Lawful U.S. Process, DCI, or U.S. Records, that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Department of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
 - g. Notice if PocketiNet has used in the past year, or plans to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in its DCI; Principal Equipment; or other systems supporting DC, Lawful U.S. Process, DCI, or U.S. Records, from a provider listed on the FCC's Covered List (*See* FCC, List of Equipment and Services Covered by Section 2 of the Secure Networks Act, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*;
 - h. Description of the LOA compliance trainings conducted in the past year;
 - i. List of every relationship with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
 - j. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
 - k. Updated SSP and Cybersecurity Plans;
 - l. Certification that the company's security practices meet or exceed the current Cybersecurity and Infrastructure Security Agency's Cross-Sector Cybersecurity Performance Goals (or any subsequent applicable sector specific performance goals);
 - m. Updated organizational chart showing all owners with a five percent or greater ownership share;
 - n. List of any Security Incidents;
 - o. A re-identification of every location that PocketiNet stores U.S. Records and the types of U.S. Records collected and stored;
 - p. A re-identification of the name and contact information of the LEPOC, Security Officer, and Alternate Security Officer, if applicable;
 - q. A list of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by the CMAs;

- r. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
- s. A description of the services that PocketiNet provides in the United States to include: the specific services provided using FCC license or authorization and other services it provides in the United States that do not require FCC license or authorization. Such a description should also detail any services provided to government or critical infrastructure customers;
- t. An updated detailed description of the types of U.S Records PocketiNet collects; and
- u. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. PocketiNet agrees to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that the CMAs identifies to PocketiNet in the future: Christine Quinn, USDOJ (at Christine.Quinn3@usdoj.gov); Tyler Wood, USDOJ (at Compliance.Telecom@usdoj.gov); and Joshua Foley, DoD (at Joshua.t.foley2.ctr@mail.mil) and osd.pentagon.ousd-a-s.list.team-telecom@mail.mil). Upon the CMAs' request, PocketiNet agrees to provide the CMAs with paper copies of any annual report, notices, or communications required under this LOA.

XV. Site Visits

48. PocketiNet agrees to permit the CMAs' requests for site visits and information, approve all requests to conduct on-site interviews of PocketiNet employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA.

XVI. General Provisions

49. If the CMAs finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, PocketiNet and LightSpeed agree to resolve the CMAs' concerns, according deference to the CMAs' views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to PocketiNet, LightSpeed, or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

50. PocketiNet and LightSpeed agree that in the event that PocketiNet or LightSpeed breaches the commitments set forth in this LOA, to include conduct contrary to the CMAs' timely objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to PocketiNet, LightSpeed, or their successors-in-interest, in addition to pursuing any other remedy available by law or equity.

51. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

52. PocketiNet and LightSpeed agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to Federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

53. PocketiNet and LightSpeed understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the application.

54. If the CMAs, with the non-objection of the Committee, finds the national security and law enforcement risks associated with the license have decreased such that they no longer warrant mitigation, the CMAs may terminate the mitigation agreement by notice to the FCC. Even after such a termination, under Section 6 of E.O. 13913, the Committee may conduct a license review for additional or new risks to U.S national security and law enforcement interests at any time. Termination of a mitigation agreement does not relieve PocketiNet or LightSpeed from liability for any breach of this mitigation agreement occurring while the mitigation agreement was in effect.

55. This LOA shall inure to the benefit of, and shall be binding upon, LightSpeed and PocketiNet and their successors, assigns, subsidiaries, and affiliates.

LIGHTSPEED NETWORKS, INC.

Randy Brogle

Randy Brogle
Chief Executive Officer
September 7, 2023

POCKETINET COMMUNICATIONS INC.

Todd Brandenburg

Todd Brandenburg
Chief Executive Officer
September 7, 2023